

party (necessary and incapable of being joined), and the demurrer must be sustained without leave to amend.

16. 9:00 AM CASE NUMBER: N26-0497
CASE NAME: PETITION OF: NATIONWIDE INSURANCE COMPANY OF AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONWIDE INSURANCE COMPANY OF AMERICA
TENTATIVE RULING:

Petitioner Nationwide Insurance Company of America seeks to compel Sheilagh Oliver to arbitration pursuant to agreement. Petitioner has provided a facially valid arbitration clause as well as demonstrated failure of Respondent to comply. The Court has received no timely opposition. Good cause shown, the Court **grants** the Petition. The parties are ordered to arbitrate this matter pursuant to their agreement.

The Court grants fees and costs, but believes they should be reduced. Respondent is ordered to pay \$600 in fees, to compensate Petitioner's counsel for three hours of time at the requested rate of \$200 per hour.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C26-00106
CASE NAME: FRANCISCO FRANCO VS. JUNE YOUNG
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YOUNG, JUNE GRACE
TENTATIVE RULING:

Defendant June Young moves to compel further responses to Form Interrogatories and Special Interrogatories served on Plaintiff Francisco Franco in this action relating to a motor vehicle accident. The Court received no timely opposition to the Motion.¹ On July 30, Defendant filed a Notice of No Opposition Received in which she noted that she *had* received amended interrogatory responses. She appears now to be withdrawing her Motion with respect to the Special Interrogatories and also with respect to most of the Form Interrogatories. Unfortunately, one of the Form Interrogatories she reports she "still finds issue with" was not in the original Motion and does not appear in any of the papers. The Court therefore can only address Form Interrogatory Nos. 6.4 and 8.6.

Form Interrogatories

Form Interrogatory No. 6.4

This interrogatory seeks information relating to health care treatment arising out of the accident.

¹ The Court notes that, in case it has not previously been made clear, this matter has been assigned to Department 10 for all purposes.

Plaintiff referenced the document production generally and then itemized the bills, but only by providing an amount. Plaintiff did not point to specific documents in the production or provide any details relating to the care received (date, type of care, etc). Plaintiff's response does not comply with Code of Civil Procedure 2030.230. If Plaintiff is going to refer to documents, he must do so by identifying the specific documents from which Defendant can ascertain the responsive information. If not all responsive information is available on those documents, Plaintiff must add that information into the interrogatory.

Form Interrogatory No. 8.6

This interrogatory seeks information relating to alleged lost work from the accident. Plaintiff objected that this interrogatory seeks expert information and is therefore premature. Plaintiff will have the opportunity to supplement his calculations, but the dates of lost work are facts underlying expert reports, not the subject of expert work. Moreover, if there is a dispute about whether a date of lost work was attributable to the accident, Plaintiff will have the opportunity to explain that later. Plaintiff must provide information known at this time.

Sanctions

Defendant seeks sanctions in the amount of \$545.00 for the time expended on this motion, but cites no statute. Interrogatory sanctions are available for unsuccessfully opposing a motion to compel. Code Civ. P. § 230.300(e). That did not occur. It would appear that Defendant is therefore seeking sanctions pursuant to sections 2023.010 or 2023.020. At the very least, section 2023.020 is applicable, and the Court will therefore grant Defendant's request for sanctions.

Conclusion

Plaintiff must provide amended responses and pay \$545.00 to counsel for Defendant no later than 30 days from the date of hearing.